



Metal Manufactures – BayWa Solar Systems

MN - 65031

Phase 1 Determination

Acquisition may be put into effect

9 September 2026

1. Determination and statement of reasons

Notified acquisition	Metal Manufactures Pty Limited, trading as MM Electrical Merchandising (MMEM) proposes to acquire the business assets of BayWa R.E. Solar Systems Pty Ltd (BayWa Solar Systems) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	MMEM is an Australian wholesale distributor of electrical, communications and data, solar, lighting and associated electrical component products. MMEM has a national footprint. Within MMEM, its Greentech division focuses on the wholesale distribution of renewable energy products and related accessories including solar photovoltaic (PV) panels, battery energy storage, EV charging and associated products and services. MMEM supplies trade contractors, commercial and industrial customers, renewable energy product installers and infrastructure projects across Australia. BayWa Solar Systems is a wholesale distributor of solar products and related accessories, including solar panels, batteries, inverters and mounting systems. It operates from a single wholesale distribution facility in Bibra Lake (Perth, Western Australia) and primarily supplies installers, commercial contractors and infrastructure related customers in Western Australia. BayWa Solar Systems also has a separate business division which designs, constructs and installs hybrid stand-alone power systems (SAPS). These systems are typically used to service large power consumers such as remote communities or sites, including for utilities and mining, where traditional grid connection is not practical or economically feasible.
Overlap between the Parties	MMEM and BayWa Solar Systems are both wholesale suppliers of renewable energy products in Western Australia.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and information from third parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC

	makes the following findings: • MMEM and BayWa Solar Systems each have a relatively small market share in the wholesale supply of renewable energy products in Western Australia; and • The merged firm would continue to face competition from alternative wholesale suppliers of renewable energy products in Western Australia.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**